

25STCV31490 25STCV31490

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C08%2F18%2F2026

Source SHA-256: 0584eec2f458b968c726b9904cf3e9168911e960bc1ac8846e45d27f63cf6fc4

Case Number: 25STCV31490 Hearing Date: August 18, 2026 Dept: 408

Defendant Frost & Sullivan Inc.'s Demurrer

to Plaintiff Benjamin Hecht's First Amended Complaint is SUSTAINED. The court will inquire whether leave to amend should be granted at the hearing.

I.

BACKGROUND

On October 28, 2025, Plaintiff Benjamin Hecht ("Plaintiff") filed a complaint against Defendant Frost & Sullivan Inc. ("Defendant") alleging a single cause of action for violations of the California Trap and Trace Law under Penal Code section 638.51.

On February 24, 2026, pursuant to Plaintiff's request, Does 1 through 15 were dismissed with prejudice.

On May 8, 2026, Plaintiff filed a First Amended Complaint ("FAC").

On June 8, 2026, Defendant filed this Demurrer to Plaintiff's FAC. On June 17, 2026, Plaintiff filed an opposition. On August 4, 2026, Defendant filed a reply.

II.

LEGAL STANDARD

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or

more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pled or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

Defendant demurs to the single cause of action alleged in Plaintiff's FAC for violations of California Trap and Trace Law under Penal Code section 638.51 pursuant to Code of Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute such cause of action.

"Section 638.51 prohibits the use of pen registers and trap and trace devices, which are 'device[s] or process[es]' that record or capture 'dialing, routing, addressing, or signaling information' from a 'wire or electronic communication,' 'but not the contents of a communication.' [Citations.] To state a claim under [Section] 638.51, a plaintiff must allege that a defendant installed and used a pen register or trap and trace device without first obtaining a court order." (Moody v. C2 Educational Systems Inc. (C.D.

Cal. 2024) 742 F.Supp.3d 1072, 1075.)

Defendant argues

that the FAC fails to allege any specific data captured by the alleged LinkedIn tracking software, known as the “LinkedIn Insight Tag”, deployed when Plaintiff visited Defendant’s website on April 12, 2025. (Demurrer, at pp. 9-11.) Defendant contends that instead Plaintiff merely alleges that the Insight Tag has the capacity to harvest: browser fingerprinting, operating system information, display characteristics, hardware identifiers, and canvas fingerprinting. (Id., at p. 9.)

The FAC alleges that

the Insight Tag allegedly deployed through Defendant’s website “captures extensive ‘electronic or other impulses’ that directly identify communication sources” which include: “detailed browser fingerprinting data providing unique device signatures and technical parameters; comprehensive device characteristics serving as persistent signaling information; and network routing data inherent in the communication monitoring process Defendant established.” (FAC, ¶ 33.) The FAC further alleges that Defendant, through this system, captured comprehensive identifying information from Plaintiff. (Id., ¶¶ 3, 21.)

The court finds

these allegations conclusory, there are no specific facts as to what the software did to Plaintiff’s device, what information was taken, nor what injury if any, Plaintiff suffered. Penal Code section 637.2(c) permits a plaintiff to file an action without alleging they suffered or are threatened with actual damages. (Pen. Code, § 637.2, subd. (c).) However, it only authorizes such a suit by “a person who has been injured by a violation of this chapter.” (Ibid.) Therefore, while they need not show actual damages, Plaintiff must still allege a statutory injury. (Boorstein v. CBS Interactive, Inc., (2013) 222 Cal.App.4th 456, 466-467 [holding statutory language limiting the cause of action for violations of Civil Code section 1798.83 et seq. to “customer[s] injured by a violation of this title” requires plaintiffs to plead a statutory injury].) Without more, the court agrees that Plaintiff merely alleges the capabilities of the Insight Tag to collect data and not the data that was collected from Plaintiff to allow the court to determine whether Plaintiff sufficiently alleged an injury.

Defendant also

argues that the alleged software cannot constitute a pen register or trap and trace device as statutory defined based on Plaintiff’s allegations. (Demurrer,

at pp. 12-14.)

A “pen register”

records outgoing “information transmitted by an instrument”, while a “trap and trace device” “captures the incoming electronic or other impulses that identify the originating number or other dialing, routing, addressing or signaling information” (Pen. Code, § 638.50, subd. (b)-(c).)

Again, Plaintiff

alleges that the Insight Tag collects “detailed browser fingerprinting data providing unique device signatures and technical parameters; comprehensive device characteristics serving as persistent signaling information; and network routing data.” (FAC ¶ 33.)

Here, at first

glance, it appears the information allegedly collected pertains to Plaintiff’s device, not information about communications to or from the device which is required to constitute a pen register or trap and trace device. (Pen. Code, § 638.50, subd. (b)-(c).) However, the court needs further information concerning whether “persistent signaling information” is capturing “network routing data” and what that data represents.

Nevertheless, the

demurrer is sustained.[1]

IV.

CONCLUSION

Defendant Frost

& Sullivan Inc.’s Demurrer to Plaintiff Benjamin Hecht’s First Amended Complaint is SUSTAINED. The court will inquire whether leave to amend should be granted at the hearing.

[1] Defendant

further argues that the FAC fails to allege facts sufficient to establish personal jurisdiction as to Defendant. (Demurrer, at pp. 14-19.) The court finds that a determination of whether California has personal jurisdiction over Defendant is improper for a demurrer. However, even if the court had considered the arguments, it appears that the FAC sufficiently alleged personal jurisdiction over Defendant taken the allegations as true. (FAC, ¶¶ 7-11.)